

JUDGMENT SHEET
IN THE HIGH COURT OF BALOCHISTAN, QUETTA.

Constitution Petition 712 of 2023
(CC# 100107602041)

JUDGMENT

M/s Shams-ud-Din Babar & Brothers
Versus
Secretary Public Health Engineering,
Government of Balochistan and others

&

Constitution Petition 713 of 2023
(CC# 100107602042)

M/S AHS Government Contractor
Versus
Secretary Public Health Engineering
Government of Balochistan and others

Date of hearing: 13 August 2025 Announced on: 25 August 2025

In C.P 712/2023:

Petitioner by: Mr. Rehan Khan Babar, Advocate.
Respondents
1 to 4 by: Mr. Shai Haq Baloch, Addl: A.G.
Respondent
5 by: Mr. Muhammad Naeem Marri, Advocate.
Respondent
6 by: Mr. Muhammad Ishaq Nasar, Advocate.

In C.P 713/2023:

Petitioner by: Mr. Rehan Khan Babar, Advocate.
Respondents
1 to 4 by: Mr. Shai Haq Baloch, Addl: A.G.
Respondent
5 by: Mr. Muhammad Naeem Marri, Advocate.
Respondent
6 by: Mr. Muhammad Ishaq Nasar, Advocate.

GUL HASSAN TAREEN, J: The captioned constitution petitions,
assail decision of the Chairman, Complaint Redressal Committee

(‘C.R.C’) dated 17 May 2023 (respondent 3 in the petitions) whereby an appeal preferred by M/s Malak Abdul Ghaffar and Brothers Construction Company (respondent 6 in the petitions) was allowed and the tender process of fifteen works of water supply schemes in the District Sherani vide advertisement dated 01 March 2023, was directed to be carried out afresh in explicit manner.

2. We heard parties’ respective learned counsel and have gone through the record.

3. Briefly, on 01 March 2023, the respondent 4 publicly invited tender of fifteen works of water supply schemes of Public Health Engineering Division for District Sherani. Being lowest, works mentioned at Serial Nos.5, 6, 10 and 11 were awarded to the petitioner in C.P 712/2023 while works mentioned at Serial Nos.9, 7, 13 and 14 to the petitioner in C.P 713/2023. Respondent 6 had challenged the decision of awarding the contracts before the C.R.C. The C.R.C vide decision dated 17 May 2023, recommended that the entire tender process be carried out afresh in explicit manner. The petitions were admitted and operation of the decision of the C.R.C was suspended by this Court vide order dated 26 May 2023. The order was, later, modified by the Court vide order dated 13 June 2023 and the official respondents were directed not to issue any work order in favour of the petitioners and, if any such order is issued, same shall be halted by maintaining the status quo.

4. The Government of Balochistan, Public Health Engineering Department, vide letter dated 07 March 2025 had directed all the Chief Engineers, Project Directors and Senior Executive Engineers for submission of excess and surrender unutilized funds of the fiscal year 2024-2025. On 20 March 2025, learned Addl: A.G stated that since the petitioner's company (in both petitions) has already completed certain works and substantial progress has also been shown upon the leftover works, therefore, the injunctive order dated 13 June 2023 is required to be modified. With consent of both parties, the injunctive order was modified and respondent 4 was directed to ensure the payment of already completed works to the petitioners. Petitioners were also directed to expedite the execution of leftover works. As the awarded works have been completed or near to completion and bills have been paid, therefore, same cannot be reversed on the principal of 'post and closed transaction'.

However, this fact has come on record that the then respondent 4 had awarded the work to the petitioner who had not fulfilled the basic eligibility criteria of qualification. Respondent 4 had illegally declared the petitioner as qualified bidder. Such act of the respondent 4 cannot be overlooked, therefore, the Chief Secretary, Government of Balochistan will proceed against him in accordance with the disciplinary law.

Office to transmit a copy of this judgment to the office of Advocate General Balochistan for information and compliance.

For the foregoing, the petitions being borne fruit are disposed of in view of order dated 20 March 2025 passed by this Court in both the petitions with no order as to cost.

Announced.
Dated the 25 August 2025

Judge

Judge

UNATTTESTED COPY